

TEXAS AIR PERMITTING

A Complete Plain-English Guide for Businesses & Industries

Updated Edition — Includes 2024–2025 Federal and State Regulatory Changes

Covering All Industries | TCEQ & EPA Aligned

Texas Commission on Environmental Quality (TCEQ) | U.S. Environmental Protection Agency (EPA)

Primary References: 30 TAC Chapters 101, 106, 116, 117, 122 | THSC Chapter 382 | 40 CFR Parts 51, 52, 60, 63, 70, 71

Key 2024 Updates: PM2.5 NAAQS Revision | NSPS 0000b/0000c | Good Neighbor Plan | Power Plant Carbon Rule | TCEQ Regional Haze SIP

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CHAPTER 1: INTRODUCTION & PURPOSE OF THIS GUIDE

This guide explains the Texas air permitting process from start to finish in plain English. It has been updated to include significant federal and state regulatory changes finalized through 2024. It covers every major step — from determining whether your facility requires a permit through the application process to what you must do after your permit is issued. It applies to all industries in Texas.

Air permitting in Texas is administered by the Texas Commission on Environmental Quality (TCEQ), which operates under authority granted by the Texas Clean Air Act (TCAA), codified in Texas Health & Safety Code (THSC), Chapter 382. Texas's air program is EPA-approved under a State Implementation Plan (SIP) delegation. Texas is within EPA Region 6, headquartered in Dallas, Texas.

1.1 Why Air Permitting Exists

The federal Clean Air Act (CAA), enacted in 1970 and significantly amended in 1977 and 1990, established a framework to control air pollution across the United States. The law requires states to develop and implement State Implementation Plans (SIPs) showing how they will achieve and maintain National Ambient Air Quality Standards (NAAQS). Air permits are the legal mechanism used to control emissions from industrial and commercial facilities.

1.2 What Pollutants Are Regulated

- **Criteria Pollutants** (regulated under NAAQS): Particulate Matter (PM-10 and PM-2.5), Ozone (O₃), Carbon Monoxide (CO), Nitrogen Oxides (NO_x), Sulfur Dioxide (SO₂), and Lead (Pb).
NOTE: The PM_{2.5} annual standard was revised in February 2024 — see Chapter 10 for Texas implications.
- **Volatile Organic Compounds (VOCs)**: Carbon-based chemicals that react in sunlight to form ground-level ozone. Sources include solvents, coatings, fuel combustion, and chemical manufacturing.
- **Hazardous Air Pollutants (HAPs)**: 187 specific toxic chemicals identified by EPA, including benzene, formaldehyde, mercury, and many others.
- **Greenhouse Gases (GHGs)**: CO₂, CH₄, N₂O, and fluorinated gases. Trigger permitting at large source thresholds. New federal rules affecting GHG regulation from power plants and oil/gas operations are discussed in Chapters 7 and 10.
- **Other pollutants**: Nuisance emissions, opacity (visible smoke), and other compounds regulated under specific TCEQ rules.

1.3 Who Needs to Read This Guide

Any business owner, facility manager, compliance officer, engineer, or consultant who operates — or plans to operate — a fixed facility in Texas that uses equipment or processes that release air pollutants. This includes:

- Oil and gas production, processing, and pipeline operations — particularly important given the 2024 OOOOb/OOOOC rules covering existing sources for the first time
- Petroleum refineries and petrochemical plants

- Power generation facilities (electric utilities, co-generation)
- Manufacturing plants (automotive, electronics, food processing, metals, chemicals)
- Concrete and cement plants, asphalt plants, aggregate facilities
- Printing and coating operations
- Dry cleaning operations
- Auto body and painting shops
- Woodworking and furniture manufacturing
- Medical and municipal waste incinerators
- Agricultural operations (certain large facilities)
- Landfills
- Mining and quarrying
- Combustion equipment (boilers, heaters, engines, turbines)

NOTE: This guide reflects TCEQ rules, EPA requirements, and significant 2024 regulatory developments. Several new rules are under active litigation. Always verify current status at www.tceq.texas.gov and www.epa.gov before making permitting or compliance decisions.

CHAPTER 2: REGULATORY FRAMEWORK — WHO MAKES THE RULES

2.1 The Texas Commission on Environmental Quality (TCEQ)

The TCEQ is a three-member commission appointed by the Governor of Texas, headquartered in Austin with 16 regional offices. TCEQ is your primary contact for all Texas air permitting. TCEQ's air permitting rules are in Title 30 of the Texas Administrative Code (TAC):

- 30 TAC Chapter 101: General Air Quality Rules — definitions, exemptions, emissions events
- 30 TAC Chapter 106: Permits by Rule (PBR)
- 30 TAC Chapter 116: NSR Permits (minor and major, PSD, non-attainment NSR)
- 30 TAC Chapter 117: Nitrogen Compounds — NO_x rules for combustion equipment
- 30 TAC Chapter 122: Federal Operating Permits (Title V)
- 30 TAC Chapter 115: Volatile Organic Compounds
- 30 TAC Chapter 111: Visible Emissions and Particulate Matter

2.2 The U.S. Environmental Protection Agency (EPA) — Region 6

EPA Region 6 (Dallas) oversees Texas's air quality program. EPA retains oversight authority: Texas rules must be at least as stringent as federal rules; for Title V permits, EPA has 45 days to review and potentially object; and EPA can independently enforce federal law against Texas facilities.

Contact: EPA Region 6, 1201 Elm St., Suite 500, Dallas, TX 75270 | (214) 665-2200 | www.epa.gov/aboutepa/epa-region-6-south-central

2.3 The Texas Clean Air Act (TCAA)

The TCAA is codified at Texas Health & Safety Code (THSC), Chapter 382. It authorizes TCEQ to require permits before any stationary source constructs or modifies equipment emitting regulated air pollutants. The TCAA is the basis for TCEQ enforcement actions and penalty authority.

2.4 How State and Federal Rules Interact

- NSPS (New Source Performance Standards) under 40 CFR Part 60: Federal emission standards for specific equipment and industries. Apply to your Texas facility whether or not your state permit references them.
- NESHAP/MACT standards under 40 CFR Parts 61 and 63: Federal toxic air pollutant standards. TCEQ typically incorporates these into permits, but they apply directly to you regardless.
- Title IV (Acid Rain) and Title VI (Stratospheric Ozone Protection): Additional federal obligations for covered facilities beyond the state permit.

IMPORTANT: Federal rules under 40 CFR apply to your Texas facility whether or not TCEQ includes them in your permit. You are responsible for knowing which federal standards apply to your equipment. Ignorance is not a defense.

2.5 Recent Regulatory Developments — What Changed in 2023–2025

The period 2023–2025 produced several significant federal rulemakings and legal developments that affect Texas permitting and compliance. These are summarized here and detailed in Chapters 7 and 10. Key rules finalized in 2023–2024 have since been subject to major legal developments — including Supreme Court stays and federal administration changes — that materially affect their current status. Texas facilities should assess applicability to their specific operations and verify current rule status before making compliance decisions.

2.5.1 Revised PM2.5 Annual Standard (February 2024)

EPA finalized a revision to the annual PM2.5 NAAQS, lowering it from 12 micrograms per cubic meter ($\mu\text{g}/\text{m}^3$) to 9 $\mu\text{g}/\text{m}^3$. This is the first revision to the annual PM2.5 standard since 2012. The lower standard will trigger new non-attainment area designations across the country, including potentially in parts of Texas. Under the Clean Air Act, EPA must propose non-attainment designations within 12 months of finalizing a revised standard and finalize them within 2 years.

- Potential Texas impact areas: The Dallas-Fort Worth Metroplex and portions of the Houston-Galveston-Brazoria (HGB) area are among the most likely candidates for PM2.5 non-attainment designation based on monitoring data.
- If designated non-attainment: New major sources and major modifications in those areas would face Non-attainment NSR instead of PSD — meaning LAER instead of BACT, and mandatory emission offsets at ratios of 1.1:1 to 1.3:1.
- Timeline: Under the Clean Air Act, EPA must propose designations within 12 months and finalize within 2 years of a NAAQS revision. However, the Trump administration that took office in January 2025 has signaled reconsideration of the 9 $\mu\text{g}/\text{m}^3$ standard itself. As of mid-2025, EPA was reviewing whether to retain or revert the standard, and the non-attainment designation timeline for Texas has been effectively suspended pending that review. Texas facilities should not plan permitting strategy around imminent PM2.5 non-attainment designations without first verifying current EPA designation status at www.epa.gov/criteria-air-pollutants.

2.5.2 Oil and Gas Methane Rule — NSPS OOOOb and OOOOc (December 2023)

EPA finalized the most significant expansion of oil and gas air regulations in years under 40 CFR Part 60 Subparts OOOOb (new and modified sources) and OOOOc (existing sources). Unlike the prior Quad O (OOOOa) rules that only covered new and modified sources, OOOOc extends methane and VOC controls to EXISTING oil and gas operations for the first time. Texas, with the nation's largest oil and gas sector, faces the broadest compliance burden of any state.

- OOOOb covers: New, modified, and reconstructed sources at well sites, gathering and boosting compressor stations, processing plants, and transmission and storage facilities.
- OOOOc covers: Existing sources at the same facility types — this is the new and critical element.
- Key new requirements: zero-emission standards for new pneumatic controllers at well sites and compressor stations; quarterly optical gas imaging (OGI) camera surveys for LDAR at compressor stations; restrictions on routine flaring of associated gas from new wells after phase-in deadlines; super emitter response program requiring response to large emission events detected by third parties.
- Implementation timeline: Phased compliance deadlines running from 2024 through 2026 depending on source type and equipment category.

2.5.3 Good Neighbor Plan — Federal Implementation Plan for Texas (June 2023, Stayed June 2024)

EPA finalized a federal Good Neighbor Plan (FIP) in June 2023 for states — including Texas — whose SIPs were found to inadequately address interstate transport of ozone-forming NOx emissions under the Clean Air Act's Good Neighbor Provision (Section 110(a)(2)(D)). The Texas FIP required significant NOx reductions from large power plants and industrial sources in the DFW and HGB areas.

- However, in June 2024, the U.S. Supreme Court issued a stay of the Good Neighbor Plan in *Ohio v. EPA*, 603 U.S. ____ (2024), halting implementation while legal challenges proceed. The underlying legal questions were remanded to lower courts.
- Affected source categories in Texas: Electric generating units (EGUs) and natural gas-fired combustion turbines above certain capacity thresholds in ozone non-attainment areas.
- Current status (as of mid-2025): The Good Neighbor Plan remains stayed nationwide. Under the Trump administration, EPA has signaled intent to repeal the rule rather than defend it in litigation. The D.C. Circuit proceedings are expected to be mooted if EPA formally withdraws the plan. As a practical matter, the Good Neighbor Plan is not operational and affected Texas facilities face no current compliance obligations under it.

IMPORTANT: The Good Neighbor Plan is currently stayed and repeal by the Trump administration is anticipated. Texas power plants and large industrial combustion sources that would have been subject to NOx emission budgets currently face no compliance obligations under the plan. However, long-term NOx control planning remains prudent given ongoing SIP obligations and potential future interstate transport requirements. Verify current status at www.epa.gov/csapr before advising clients.

2.5.4 Power Plant Carbon Rules — Section 111 (April 2024)

EPA finalized new greenhouse gas standards for power plants under Clean Air Act Section 111 in April 2024. The rules establish CO2 emission standards for new natural gas-fired combustion turbines and impose carbon capture requirements on existing coal-fired plants and large new gas plants operating at high capacity factors.

- New natural gas combined cycle plants: CO2 emission limits achievable through carbon capture and storage (CCS) for units operating above 40% capacity factor.
- Existing coal-fired plants: Required to either retire by 2039 or install CCS with 90% capture efficiency by 2032.
- Texas implications: Texas has one of the nation's largest fleets of natural gas-fired generation. New gas plant developers in Texas must evaluate whether these standards apply to their planned unit.
- Legal status (as of mid-2025): These rules were stayed by a federal circuit court pending judicial review, and the Trump administration that took office in January 2025 moved to repeal them as part of a broad rollback of power sector GHG regulations. As of mid-2025, the rules are stayed and repeal is underway. Texas power plant developers should verify current rule status at www.epa.gov before relying on any compliance timelines from these regulations.

2.5.5 TCEQ Regional Haze — Second Planning Period SIP

TCEQ is implementing its second Regional Haze planning period SIP, covering 2018–2028, to address visibility improvement goals for Texas's two federal Class I areas: Big Bend National Park (Brewster/Presidio Counties) and Guadalupe Mountains National Park (Culberson/Hudspeth Counties). The second planning period focuses on continued visibility improvement and long-term strategy implementation.

- Affected sources: Large industrial sources — primarily power plants, refineries, and chemical facilities — within the 'significant impact area' of Big Bend and Guadalupe Mountains must conduct additional analysis in PSD permit applications.
- Best Available Retrofit Technology (BART): Certain older large sources have been required to implement BART controls as part of the first planning period. The second planning period evaluates continued progress and may impose additional controls on some sources.
- TCEQ Regional Haze SIP progress reports are submitted to EPA Region 6 every 5 years. TCEQ's current round of SIP development is active.

NOTE: If your facility is within approximately 300 km of Big Bend National Park or Guadalupe Mountains National Park and requires a PSD permit, you must conduct a Class I area visibility impact analysis. Contact TCEQ's Modeling Team for guidance on the current significance thresholds for these analyses.

2.5.6 Loper Bright — End of Chevron Deference (June 2024)

On June 28, 2024, the U.S. Supreme Court decided *Loper Bright Enterprises v. Raimondo*, 603 U.S. ____ (2024), overturning the doctrine of Chevron deference established in *Chevron U.S.A., Inc. v. NRDC*, 467 U.S. 837 (1984). For 40 years, Chevron required courts to defer to federal agency interpretations of ambiguous statutes. Loper Bright eliminates that deference — courts must now exercise independent judgment in determining what a statute means, rather than accepting EPA's interpretation simply because the statute is ambiguous.

Significance for air permitting: EPA has relied extensively on Chevron deference to justify broad interpretations of Clean Air Act authority, including BACT determinations, GHG permitting, NAAQS revisions, and NSPS rulemakings. Under Loper Bright, each of these regulatory programs is now more vulnerable to legal challenge. Courts reviewing future EPA rules — and re-examining existing ones — will apply independent statutory interpretation rather than agency deference.

- Combined with *West Virginia v. EPA* (major questions doctrine, 2022), Loper Bright creates a significantly more constrained legal environment for EPA rulemaking on major regulatory questions.
- Existing rules that were sustained under Chevron may face new challenges based on independent statutory interpretation.
- For permit applicants: BACT and other permit condition determinations that relied on EPA guidance and regulatory interpretation are more likely to face legal scrutiny going forward.

NOTE: *Loper Bright does not invalidate existing EPA rules on its own — it changes the standard courts use when those rules are challenged. Well-established rules with clear statutory authorization are less affected than expansive regulatory interpretations of ambiguous statutory language.*

2.5.7 IRA Methane Waste Emissions Charge (Inflation Reduction Act, Section 136)

The Inflation Reduction Act (August 2022, Pub. L. 117-169) created a Methane Waste Emissions Charge under Clean Air Act Section 136 — the first direct federal fee on greenhouse gas emissions. The charge applies to petroleum and natural gas system facilities that report methane emissions under EPA's Mandatory Greenhouse Gas Reporting Rule (40 CFR Part 98) and that emit methane above specified waste thresholds.

Rate structure: \$900 per metric ton of waste methane emissions in 2024 (for calendar year 2024 emissions, payable in 2025); \$1,200/metric ton in 2025; \$1,500/metric ton in 2026 and beyond. The charge applies only to emissions above applicable waste thresholds — not to total reported emissions.

- Who is affected: Petroleum and natural gas system facilities at all segments — production, gathering, processing, transmission, storage, distribution — that report under 40 CFR Part 98 Subpart W and exceed the applicable waste emission thresholds.
- NSPS exemption: Facilities subject to and in compliance with an approved NSPS OOOOb or equivalent program may qualify for a reduced or eliminated charge — providing a direct financial incentive for OOOOb compliance.
- Trump administration response: The Trump administration that took office in January 2025 opposed the Methane Waste Emissions Charge and sought administrative and legislative avenues to delay or eliminate it. As of mid-2025, the charge's ultimate fate was uncertain. Texas oil and gas operators subject to 40 CFR Part 98 reporting should monitor EPA's implementation guidance and any legislative action affecting Section 136.

IMPORTANT: *Texas oil and gas facility operators that report under 40 CFR Part 98 Subpart W should determine whether the Methane Waste Emissions Charge applies to their operations regardless of the political outlook. Financial exposure can be significant. Verify current status and EPA's implementation guidance at www.epa.gov/inflation-reduction-act-and-epa/methane-emissions-charge.*

2.5.8 2025 Regulatory Context — Trump Administration Deregulatory Actions

The Trump administration that took office January 20, 2025 moved quickly to reverse or pause numerous Biden-era environmental regulations. For Texas air permitting, the most relevant developments include:

- Day-one executive orders directing agencies to review and identify regulations for rescission, modification, or delay, with specific focus on GHG and energy sector rules.
- EPA leadership changes resulting in active reconsideration of the PM_{2.5} NAAQS (9 µg/m³ standard), the Good Neighbor Plan, the Power Plant Carbon Rule, and other rules finalized in 2023–2024.
- Continued enforcement of NSPS OOOOb, though with signaled intent to review specific provisions. OOOOb remained operative as of mid-2025 — operators should not assume enforcement discretion based on political context.
- Reduced EPA emphasis on Environmental Justice permitting considerations, though TCEQ's own processes continue under state law obligations.

NOTE: *Regulatory rollback does not eliminate underlying Clean Air Act statutory obligations or TCEQ's independent state authority. Even where federal rules are stayed or repealed, Texas facilities remain subject to TCEQ's own rules under the Texas Clean Air Act, Title V operating permit conditions, and any federally enforceable permit limits already in place. Do not assume that a federal rule's repeal eliminates a compliance obligation that is also embedded in a state-issued permit.*

CHAPTER 3: DO YOU NEED A PERMIT? — APPLICABILITY DETERMINATION

The first and most critical step is determining whether your facility or proposed project requires an air permit. Getting this wrong — in either direction — is costly. Operating without a required permit can result in significant fines and shutdown orders. The applicability determination process is unchanged by the 2024 regulatory updates, but note that PM_{2.5} non-attainment designations resulting from the revised NAAQS standard could change which permit type applies for sources in DFW and HGB counties.

3.1 The Basic Rule

Under 30 TAC Chapter 116 and THSC Section 382.0518, you generally need a New Source Review (NSR) permit before you construct a new facility or install new equipment that will emit air pollutants, OR modify an existing permitted facility in a way that increases emissions. There are exceptions — sources that are exempt or qualify for a Permit by Rule. Authorization must be in hand BEFORE construction begins.

3.2 Step 1 — Is Your Source a Stationary Source?

A stationary source is any building, structure, facility, or installation that emits air pollutants and is fixed in location. Almost every industrial or commercial facility qualifies. Mobile sources (trucks, cars, aircraft) are regulated differently and are not covered here.

3.3 Step 2 — Check for Standard Exemptions (30 TAC 101.10)

TCEQ's standard exemptions are listed in 30 TAC Section 101.10. If your equipment falls within a standard exemption, no permit or registration is required. Common examples include portable space heaters under 400,000 BTU/hour, small emergency generators meeting specific size and hour limits, certain small paint booths, and laboratory equipment used for quality control. Standard exemption categories are very specific — read each condition carefully. Document why you believe your equipment qualifies.

3.4 Step 3 — Check for a Permit by Rule (PBR) (30 TAC Chapter 106)

If your equipment does not qualify for a standard exemption but is a routine, lower-risk type of operation, you may qualify for a Permit by Rule (PBR) under 30 TAC Chapter 106. A PBR pre-authorizes your operation type if you meet all specified conditions. Some PBRs require registration with TCEQ through STEERS; others are self-implementing. Common PBRs include:

- PBR 106.261: Surface coating operations
- PBR 106.263: Printing operations
- PBR 106.4: Concrete batch plants
- PBR 106.352: Internal combustion engines
- PBR 106.492: Dry cleaning operations
- PBR 106.512: Flares for combustion of waste gases

- PBR 106.513: Petroleum product storage tanks

NOTE: Some PBRs require TCEQ registration before you operate. Others are self-implementing — you simply comply and begin operating. Check each specific PBR for registration requirements. If you claim a PBR and any condition is not met, you are operating without authorization.

3.5 Step 4 — Calculate Potential to Emit (PTE)

If your source doesn't qualify for an exemption or PBR, calculate Potential to Emit (PTE) — the maximum annual emissions if operating at full capacity, 24 hours/day, 365 days/year, without emission controls (unless those controls are legally enforceable). Calculate PTE for: NO_x, SO₂, CO, PM-10, PM-2.5, VOC, Lead, each individual HAP, combined HAPs, and CO₂-equivalent (CO₂e) GHGs for larger combustion sources. Use EPA AP-42 emission factors, manufacturer specifications, or material balance calculations.

3.6 Step 5 — Determine Permit Type

Emission Level (PTE)	Permit Type	Program
Below standard exemption thresholds	No permit required	Standard Exemption (30 TAC 101.10)
Qualifies under a specific PBR	Permit by Rule	30 TAC Chapter 106
Above exemption, below major thresholds	Minor NSR Permit	30 TAC Chapter 116, Subchapter B
100–250 tpy criteria pollutants (attainment area)	PSD Permit (Major NSR)	30 TAC 116, Subchapter B + 40 CFR 52.21
Above Title V thresholds	Title V Operating Permit	30 TAC Chapter 122 / 40 CFR Part 70
Major source in non-attainment area	Non-attainment NSR Permit	30 TAC 116, Subchapter B + 40 CFR Part 51, App. S

3.7 Major Source Thresholds

PSD thresholds (attainment areas):

- 100 tpy for 28 listed source categories (fossil fuel boilers >250 mmBTU/hr, petroleum refineries, chemical plants, steel mills, Portland cement plants — see 40 CFR 52.21(b)(1)(i)(a))
- 250 tpy for all other source categories

Title V thresholds:

- 100 tpy of any criteria pollutant (NO_x, SO₂, CO, PM-10, VOC)
- 10 tpy of any single HAP
- 25 tpy of all combined HAPs

Non-attainment NSR thresholds — Current Texas non-attainment areas:

- DFW Ozone non-attainment (Serious): Major source threshold 50 tpy VOC or NO_x
- HGB Ozone non-attainment (Marginal): Major source threshold 100 tpy VOC or NO_x
- PM_{2.5} Non-attainment (pending): If DFW or HGB counties are designated non-attainment under the revised 9 µg/m³ annual standard, the major source threshold for PM_{2.5} would be 100 tpy in those areas. Check EPA Green Book for current designations.

IMPORTANT: Calculating PTE incorrectly is one of the most common errors in air permitting. Hire a qualified air quality engineer. If you underestimate your PTE and use a less stringent permit type than you actually need, you could be found to be operating without a required permit.

CHAPTER 4: TYPES OF AIR PERMITS — A DETAILED OVERVIEW

4.1 Standard Exemptions (30 TAC 101.10)

Standard exemptions exclude certain equipment from all permit requirements. No application, no filing fees, no review. Document in your records why you believe your equipment qualifies. Exemptions are very specific — do not assume you qualify without reading each condition carefully.

4.2 Permits by Rule (PBR) — 30 TAC Chapter 106

A PBR is a pre-approved authorization for specific types of routine, lower-emitting operations. TCEQ has already evaluated the emission potential of these source types. Two sub-types:

- Non-registration PBRs: Simply comply with conditions and operate. No TCEQ filing needed.
- Registration PBRs: File a PBR Registration Form through TCEQ's STEERS system before construction or operation. A fee may apply.

PBRs do not require BACT analysis. Multiple PBRs can sometimes be combined at one facility. If any condition is not met, you are operating without authorization — this is a significant violation.

NOTE — On-Site Sewage Facility (OSSF) Treatment Systems: TCEQ clarified in a June 2025 interoffice memorandum (Air Permits Division) that proprietary OSSF treatment systems authorized under 30 TAC Chapter 285 may use a combination of two PBRs for air authorization: (1) PBR §106.531 [Sewage Treatment Facility] for emissions from wastewater, waste tanks, and waste lines; and (2) PBR §106.183 [Boilers, Heaters, and Other Combustion Devices] for fuel combustion associated with the heating process. This applies to incinerating toilets and septic incinerators — these units do not meet the definition of incineration under 30 TAC Chapter 101 (which requires burning 10% or more of solid waste) and are not large wastewater treatment systems. No registration with TCEQ is required to claim these authorizations. Compliance with §§106.4 [Requirements for Permitting by Rule] and 106.8 [Recordkeeping] is still required. Important: this guidance does not authorize solid waste disposal. Ash produced by these systems cannot be disposed of on-site or used as fertilizer or compost — ash disposal must comply with all applicable federal, state, and local requirements.

4.3 Minor NSR Permits — 30 TAC Chapter 116, Subchapter B

A minor NSR permit (Permit to Construct) is required when your facility exceeds standard exemption or PBR thresholds but does not reach major source levels. TCEQ reviews your application and issues a permit specifying emission limits, operating requirements, control technology, and monitoring/recordkeeping. BACT applies for minor sources in attainment areas; RACT applies in non-attainment areas.

4.4 PSD Permits — Major Sources in Attainment Areas

PSD review applies when constructing a new major source or making a major modification in an attainment area. Requirements include:

- Best Available Control Technology (BACT): Top-down analysis — start with the most stringent control technology and work down only if you can demonstrate technical, economic, or environmental infeasibility. Use EPA's RBLC database at rbcl.epa.gov.

- Air Quality Impact Analysis (AERMOD modeling): Demonstrate no NAAQS violation and no PSD increment violation.
- PSD Increments: Limits on how much an attainment area's air quality can degrade above baseline. Texas enforces Class II increments for all regulated pollutants.
- Class I Area Protection: Big Bend National Park and Guadalupe Mountains National Park are Texas's federal Class I areas. Facilities within the significant impact radius must conduct visibility and air quality impact analyses and notify the Federal Land Manager (National Park Service).
- Pre-construction requirement: All analysis must be completed and the permit received BEFORE construction begins.

NOTE: TCEQ administers the federal PSD program by delegation. EPA Region 6 retains review authority for certain complex PSD actions.

4.5 Non-attainment NSR — Major Sources in Non-attainment Areas

For constructing a new major source or making a major modification in a non-attainment area (currently DFW and HGB for ozone, and potentially DFW/HGB for PM_{2.5} under the revised standard), requirements are more stringent than PSD:

- Lowest Achievable Emission Rate (LAER): The most stringent emission rate achievable in practice. Economic cost is NOT a factor. You must achieve the lowest rate in practice nationwide for similar sources, regardless of cost.
- Emission Offsets: Actual surplus reductions from other existing sources in the non-attainment area. Required ratios: DFW Serious ozone — 1.3:1 for VOC and NO_x; HGB Marginal ozone — 1.1:1.
- Major Stationary Source Review: Certification that all other major sources you own in the non-attainment area comply with all applicable requirements.

4.6 Title V Federal Operating Permits — 30 TAC Chapter 122

A Title V permit is required for every major source. It consolidates ALL applicable requirements into one permit document. Title V does not itself add new emission limits — it makes existing requirements enforceable in one comprehensive document.

- Annual compliance certification submitted to TCEQ and EPA Region 6 by March 31 each year
- Permit renewal every 5 years
- EPA Region 6 has 45 days to review before TCEQ can issue the permit
- Annual emissions fees: typically \$25–\$50 per ton of regulated pollutant (verify current rate at www.tceq.texas.gov)
- Publicly available — any person can access your Title V permit

IMPORTANT: Title V aggregation: Even if your facility falls below major source thresholds on its own, nearby facilities under common ownership and control can be aggregated. Consult a qualified consultant or attorney before concluding you are below major source thresholds.

CHAPTER 5: PRE-APPLICATION STEPS — WHAT TO DO BEFORE YOU FILE

The pre-application phase is the most important and most often skipped part of air permitting. Complete every step before you file anything with TCEQ.

5.1 Step 1 — Define Your Project Completely

Document every emission unit, control device, fuel type and consumption rate, raw materials, process throughput rates, maximum operating hours, and stack parameters (height, diameter, exit temperature, exit velocity). Include a site layout map with equipment locations, property lines, and distances to sensitive receptors. The more complete your project definition, the smoother the application process.

5.2 Step 2 — Calculate Potential to Emit

Calculate PTE for every regulated pollutant using EPA AP-42 emission factors (www.epa.gov/air-emissions-factors-and-quantification), manufacturer specifications, or material balance calculations. Calculate PTE for: NO_x, SO₂, CO, PM-10, PM-2.5, VOC, Lead, each individual HAP, combined HAPs, and CO₂-equivalent GHGs for larger combustion sources.

5.3 Step 3 — Identify All Applicable Federal Standards

Review all federal standards applicable to your equipment before preparing your application. This includes:

- NSPS (40 CFR Part 60): Look up every relevant subpart. For Texas industries: Subpart Dc (small boilers), Subpart IIII (diesel engines), Subpart JJJJ (natural gas engines), Subpart KKKK (turbines), Subpart OOO (nonmetallic mineral processing), Subpart J (petroleum refinery units).
- NEW — NSPS OOOOb (40 CFR Part 60 Subpart OOOOb): Applies to new and modified oil and gas sources at well sites, compressor stations, processing plants, and transmission/storage facilities. Finalized December 2023. See Chapter 7.
- NEW — NSPS OOOOc (40 CFR Part 60 Subpart OOOOc): Applies to EXISTING oil and gas sources — the first time federal rules have directly covered the existing inventory of oil and gas equipment. See Chapter 7.
- MACT/NESHAP (40 CFR Parts 61 and 63): Review for your source category. Key Texas standards: Subpart CC (petroleum refineries), Subpart HH (oil and gas production), Subpart DDDDD (industrial boilers), Subpart ZZZZ (stationary engines).

5.4 Step 4 — BACT or LAER Analysis (If Required)

If your project requires a major NSR permit (PSD or Non-attainment NSR), conduct a BACT or LAER analysis before submitting. This analysis must be included in your application.

BACT Top-Down Process:

1. Identify all available control technologies for each pollutant.

2. Rank from most to least stringent.
3. Starting with the most stringent, evaluate technical feasibility.
4. If technically feasible, evaluate economic, energy, and environmental impacts.
5. The first option that survives is your BACT.

Resources: EPA RBLC database (rblic.epa.gov) and TCEQ's BACT guidance documents.

5.5 Step 5 — Air Dispersion Modeling (If Required)

PSD permits require AERMOD modeling demonstrating no NAAQS violation and no PSD increment violation. Key inputs: emission rates, stack parameters, site topography, five years of hourly meteorological data, and background air quality data from nearby TCEQ monitoring stations. Texas terrain varies — western Texas (Permian Basin, Trans-Pecos) has different topographic characteristics than the Gulf Coast or Piney Woods regions.

5.6 Step 6 — Pre-Application Meeting with TCEQ

Request a free pre-application meeting with TCEQ's Air Permits Division, particularly for major NSR and Title V applications. Contact: (512) 239-1250 | www.tceq.texas.gov/permitting/air. TCEQ staff will review your project, identify potential issues, and confirm application requirements.

5.7 Step 7 — Application Fees

TCEQ fee ranges (verify current amounts at www.tceq.texas.gov before submitting):

- PBR Registration: \$100 to \$1,500 depending on the PBR
- Minor NSR Permits: \$1,500 to \$10,000+ depending on complexity
- Major NSR/PSD Permits: \$10,000 to \$30,000+
- Title V Initial Application: \$10,000 to \$25,000+
- Title V Annual Emissions Fees: \$30 to \$50 per ton of regulated pollutant emitted

IMPORTANT: Fee schedules change. Always verify current fees at www.tceq.texas.gov/permitting/fees before submitting any application.

CHAPTER 6: THE APPLICATION PROCESS — STEP BY STEP

6.1 Assembling the Application Package

A complete air permit application package for a minor or major NSR permit includes:

6. Completed TCEQ application forms (TCEQ-10001, TCEQ-10152, and applicable Chapter 116 or 122 forms — current versions at www.tceq.texas.gov)
7. Facility description: Narrative describing all emission units, control devices, and processes
8. Emission calculations: Complete PTE for every regulated pollutant with all emission factors, operating parameters, and source references shown
9. Control technology analysis: BACT (PSD) or LAER (Non-attainment NSR)
10. Air dispersion modeling report (if required)
11. Federal standards compliance demonstration (NSPS, MACT, and applicable OOOOb/OOOOc requirements for oil and gas sources)
12. Site plan/facility layout map
13. Equipment specifications and manufacturer data sheets
14. Application fee payment

For Title V applications, additionally include:

15. Complete listing of all applicable requirements for each emission unit
16. Compliance schedule (if not currently in compliance with any requirement)
17. Proposed monitoring, recordkeeping, and reporting protocols
18. Responsible Official certification

6.2 Submitting Your Application

All TCEQ air permit applications are submitted through TCEQ's STEERS system at www15.tceq.texas.gov/steers/. Create a STEERS account if you do not have one. STEERS allows electronic submission, document upload, fee payment, application tracking, and response to TCEQ information requests.

6.3 TCEQ Initial Completeness Review

After receipt, TCEQ conducts a completeness review — checking that all required forms, calculations, and documents are present. Timeline:

- Minor NSR permits: Approximately 30 days
- Title V applications: 60 days
- Major NSR/PSD permits: 60 to 90 days

If TCEQ finds your application incomplete, it sends a deficiency letter. You typically have 30 days to respond. The permit review clock does not start until TCEQ declares your application complete.

6.4 Technical Review

TCEQ's permit writer conducts a detailed technical review: verifying emission calculations, reviewing BACT/LAER analysis, reviewing air quality modeling, checking federal standards compliance (including OOOOb/OOOOc for oil and gas applications), and developing draft permit conditions. TCEQ may issue Requests for Additional Information (RAIs). Respond promptly and completely.

6.5 Draft Permit Review

After technical review, TCEQ prepares a draft permit. Review every condition carefully before public notice begins. Address errors or concerns with your permit writer at this stage — it is much harder to correct problems after public notice has begun.

6.6 Public Notice Requirements

Permit Type	Newspaper Notice?	TCEQ Website?	Comment Period
PBR Registration	No	No	None
Minor NSR	Yes (some cases)	Yes	30 days
Major NSR / PSD	Yes	Yes	30 days
Non-attainment NSR	Yes	Yes	30 days
Title V	Yes	Yes + 45-day EPA review	30 days

Newspaper notice must be published in a newspaper of general circulation in the county where the facility is located. For major NSR and Title V permits, bilingual notice (English and Spanish) is required in counties with significant Spanish-speaking populations.

6.7 Public Comment and Contested Case Hearings

During the 30-day comment period, any person may submit written comments to TCEQ's Office of the Chief Clerk. TCEQ must consider all timely substantive comments. If affected persons request a contested case hearing, the permit process enters a legal proceeding before the State Office of Administrative Hearings (SOAH), which can add 12 to 24 months or more to the timeline.

NOTE: To minimize the risk of a contested case hearing, engage proactively with communities near your proposed facility early in planning — before the formal public notice period begins. This is especially important in DFW and HGB non-attainment areas and near any Environmental Justice communities.

6.8 EPA Review (Title V Permits)

For Title V permits, TCEQ must submit the proposed permit to EPA Region 6. EPA has 45 days to review and may object if the permit does not comply with federal requirements. TCEQ may not issue the final permit until any EPA objection is resolved.

6.9 Permit Issuance

After all reviews, public notice, and (if applicable) contested case proceedings are completed, TCEQ issues the final permit. The permit is sent to you and posted publicly on TCEQ's website.

IMPORTANT: Constructing or modifying a source before receiving a required air permit is a violation of the Texas Clean Air Act. Penalties reach \$25,000 per day per violation, plus costs of retrofitting or removing illegally constructed equipment.

CHAPTER 7: INDUSTRY-SPECIFIC GUIDANCE

While the general permitting process applies to all industries, certain industries have specific rules, standard permits, or common permitting pathways that deserve special attention. This chapter includes the 2024 regulatory updates — particularly the new OOOOb/OOOOc rules for oil and gas — woven into the relevant industry sections.

7.1 Oil and Gas Production (Upstream) — UPDATED 2024

Oil and gas production operations — drilling, completion, production, and gathering — are the most heavily regulated air emissions sources in Texas and the sector most affected by the 2023–2025 federal regulatory period.

7.1.1 Permit Requirements

- Many routine oil and gas production facilities (tank batteries, compressor stations, dehydrators) qualify for PBRs under 30 TAC Chapter 106 (PBR 106.352 for engines, PBR 106.513 for crude oil storage tanks).
- Larger or more complex facilities (large compressor stations, gas processing plants) typically require standard NSR permits under Chapter 116.

7.1.2 Prior Federal Standards (OOOOa) — Still in Effect

NSPS Subpart OOOOa (40 CFR Part 60) — the 'Quad Oa' rule — remains in effect for new, modified, and reconstructed sources at oil and gas facilities. It requires:

- Reduced emissions completions (green completions) for hydraulically fractured gas wells
- Emission limits on centrifugal and reciprocating compressors
- Emission limits on pneumatic controllers and pneumatic pumps
- Closed storage vessel systems with vapor control
- LDAR programs for compressor stations and processing plants

7.1.3 NEW — NSPS OOOOb: New and Modified Sources (Effective December 2023)

NSPS Subpart OOOOb strengthens and expands the requirements that apply to new, modified, and reconstructed oil and gas sources. Key changes from OOOOa:

- Zero-emission requirement for new pneumatic controllers: All new pneumatic controllers at well sites and compressor stations must use instrument air, electrical actuation, or other zero-emission designs. No new natural gas-driven pneumatic controllers are permitted.
- Expanded LDAR — Optical Gas Imaging (OGI): Quarterly OGI camera surveys are required at compressor stations. OGI surveys must be conducted by trained personnel using cameras meeting specific specifications.
- Flare monitoring and management: Routing gas to flares as a means of emission control is restricted. New requirements mandate flare monitoring systems, and flares must operate with a minimum combustion efficiency of 98 percent. Flare tip velocity limits apply.
- Well completions: Green completion (reduced emission completion) requirements are expanded and clarified.

- Fugitive emissions monitoring at well sites: OGI surveys required quarterly for well sites with 3 or more wellheads.
- Covers: Well sites, gathering and boosting compressor stations, natural gas processing plants, transmission compressor stations, and underground natural gas storage facilities.

7.1.4 NEW — NSPS OOOOc: Existing Sources (Effective December 2023)

NSPS Subpart OOOOc is the most significant new development for the Texas oil and gas industry. For the first time in the history of the oil and gas NSPS program, federal standards now apply directly to EXISTING equipment — not just new construction. OOOOc covers existing wells, compressors, pneumatic devices, storage vessels, and other equipment that predates the OOOOb compliance dates.

OOOOc key requirements for existing sources:

- Pneumatic controllers: Existing natural gas-driven pneumatic controllers must be replaced with zero-emission devices (instrument air, electric) on a phase-in schedule by facility type. Deadlines run through 2026 depending on controller type and location.
- Fugitive emissions monitoring: Existing well sites with 3+ wellheads must conduct quarterly OGI surveys. Existing compressor stations must conduct quarterly OGI surveys.
- Storage vessels: Existing storage vessels must meet requirements for vapor control — either through a closed-vent system to a control device (achieving 95 percent reduction) or other compliant approach.
- Compressors: Existing wet seal centrifugal compressors and reciprocating compressors must meet emission standards, either through equipment modifications or replacement.
- Super emitter response program: Operators must have a program to respond to notification of a 'super emitter event' (a single emission source detected emitting 100 kg/hr or more of methane or VOC) by a qualified third party using approved remote sensing technology. Response must begin within 5 days and corrective action must be completed within 30 days.

OOOOc compliance is required regardless of whether an existing facility has a TCEQ permit that predates OOOOc. Federal rules apply directly to the equipment. Your TCEQ permit may need to be amended to reflect OOOOc requirements.

IMPORTANT: OOOOc is a federal rule that applies to existing equipment at oil and gas facilities across Texas, regardless of when that equipment was built or last permitted by TCEQ. Operators should not wait for TCEQ to contact them about OOOOc — proactive compliance planning must begin now. Consult a qualified environmental engineer to assess your specific equipment inventory against OOOOc requirements.

7.1.5 40 CFR Part 63 Subpart HH — NESHAP for Oil and Gas Production

Subpart HH applies to major HAP source oil and gas production facilities. It imposes HAP emission standards on glycol dehydrators, storage vessels, and equipment leak fugitives. This rule predates OOOOb/OOOOc but remains in full effect alongside the new rules.

7.1.6 TCEQ Implementation Guidance — NSPS OOOO-Series (March 2026)

On March 23, 2026, TCEQ issued an implementation guidance memorandum (Kelly Keel, Executive Director) addressing how Texas oil and gas operators should navigate the overlap between the federal NSPS OOOO-series rules and TCEQ state authorization requirements. This memorandum is

operationally significant for every Texas oil and gas operator and resolves a period of regulatory ambiguity about the relationship between federal OOOOb/OOOOc compliance and state permit obligations.

TCEQ's Position: Federal Compliance Satisfies Equivalent State Requirements

When a Texas oil and gas site complies with all applicable updated federal NSPS OOOO-series requirements, TCEQ will consider that federal compliance equivalent to and satisfying the corresponding state requirements in 30 TAC Chapter 115 and standardized authorization mechanisms (Permits by Rule and Standard Permits). This applies across all four NSPS subparts — OOOO, OOOOa, OOOOb, and OOOOc. The TCEQ authorization mechanisms covered include: 30 TAC §115 Subchapter B Division 7 (oil and gas service in ozone non-attainment areas), PBR §106.352 (oil and gas handling and production), PBR §106.353 (temporary oil and gas facilities), PBR §106.354 (iron sponge gas-treating units), PBR §106.355 (pipeline metering, purging, and maintenance), PBR §106.359 (planned maintenance, startup, and shutdown), Standard Permit 30 TAC §116.620 (installation and modification of oil and gas facilities), and the Non-rule Standard Permit for oil and gas handling and production.

Critical Limitation: TCEQ Authorization Is Still Required

Complying with OOOOb/OOOOc does not eliminate the obligation to obtain TCEQ air authorization. Operators must still: obtain the applicable TCEQ PBR, Standard Permit, or case-by-case authorization; quantify emissions; and follow all applicable registration or application processes. The federal compliance equivalency provision addresses substance — the emission control requirements — not the procedural authorization framework.

Notification Process for Operators Voluntarily Following OOOOb

Operators voluntarily choosing to comply with NSPS OOOOb (rather than waiting for the state plan to be finalized) must follow this notification process:

- Submit a notification of compliance status to EPA's Compliance and Emissions Data Reporting Interface (CEDRI) for each site. Associate it with 40 CFR Part 60, the applicable OOOO-series subpart, and report type "Notification Report." Include the TCEQ Regulated Entity Number in the "State Facility ID" field. If no Regulated Entity Number exists, first submit a TCEQ Core Data Form.
- The notification must be signed by a responsible company official and must acknowledge that the representations in the notification will become enforceable limitations for compliance demonstrations. The notification must identify the site by Core Data (Customer Number and Regulated Entity Number) and permit/registration numbers, identify the authorization mechanism (e.g., PBR §106.352), list all applicable units and equipment, list the NSPS requirements being met, and include a contact person with full contact information.
- Title V permit reports and compliance certifications must include any discrepancies between state and federal regulations. Within one year of TCEQ and EPA finalizing regulatory and authorization updates, submit updated registrations and/or applications reflecting the changes.

Innovative Technologies and AMOC

For EPA-approved innovative technologies used to comply with NSPS OOOOb/OOOOc, each initial technology approval must be individually processed through a TCEQ Alternative Methods of Compliance (AMOC) evaluation to update the permit record. Innovative technology equivalency is not assumed — each instance requires a separate TCEQ AMOC determination before the technology can be credited toward state authorization compliance.

7.2 Petroleum Refineries

Most refineries in Texas operate under Title V permits and are among the most complex air permitting cases. Federal standards include NSPS Subpart J (petroleum refinery process units) and 40 CFR Part

63 Subpart CC (NESHAP for petroleum refineries). Continuous Emissions Monitoring Systems (CEMS) are typically required for large combustion sources. Flare management plans are required under TCEQ rules and EPA Subpart Ja.

7.3 Power Generation — UPDATED 2024

Power plants and large combustion sources face significant regulatory change in 2024.

- NSPS Subpart Da applies to electric utility steam generating units (power plants) over 73 MW: emission limits for SO₂, NO_x, and PM.
- 30 TAC Chapter 117 contains stringent NO_x limits for combustion equipment in DFW and HGB non-attainment areas. TCEQ Chapter 117 compliance is required for many natural gas-fired combustion units in those areas.
- Title V permits are required for essentially all power plants.
- CEMS are required for most large power generation sources.
- Good Neighbor Plan: Texas power plants that would have been subject to the EPA Good Neighbor FIP for interstate NO_x transport must continue to monitor the legal proceedings in *Ohio v. EPA*. The plan is currently stayed but could be reinstated. Facility-level NO_x reduction plans should be developed regardless, as future ozone SIP obligations may impose similar requirements.
- Power Plant Carbon Rule: The April 2024 Section 111 CO₂ standards for natural gas and coal-fired plants are under active legal challenge. Texas natural gas plant developers should monitor legal status closely. See Chapter 10.

7.4 Chemical Manufacturing

- Most chemical plants above minor source thresholds need NSR permits for each process unit.
- MACT standards (40 CFR Part 63) cover most chemical manufacturing categories.
- Risk Management Plans (RMPs) under CAA Section 112(r) are required if your facility stores regulated toxic or flammable substances above threshold quantities.
- Fenceline monitoring requirements apply to some large chemical plants under EPA's residual risk rules.

7.5 Concrete, Asphalt, and Aggregate

- Concrete batch plants often qualify for PBR 106.4 if production rates and equipment meet PBR conditions.
- Hot mix asphalt (HMA) plants typically require NSR permits. TCEQ has a standard permit for asphalt plants meeting specific design and operational criteria.
- Portland cement plants: NSPS Subpart F and 40 CFR Part 63 Subpart LLL apply. Major sources requiring Title V.
- Rock crushing, screening, and conveying: Fugitive dust control required. NSPS Subpart OOO applies to nonmetallic mineral processing plants.

7.6 Printing and Surface Coating

- Small operations may qualify for PBR 106.261 (surface coating) or PBR 106.263 (printing).
- Larger operations need NSR permits with VOC and HAP limits.
- 40 CFR Part 63 Subpart JJJJ applies to major HAP printing/publishing sources.
- TCEQ Chapter 115 contains VOC content limits for coatings in various industries.

7.7 Dry Cleaning

- All PCE dry cleaners are subject to 40 CFR Part 63 Subpart M regardless of size.
- Subpart M requires 3rd or 4th generation dry-to-dry machines for new installations, with refrigerated condensers and carbon adsorbers.
- Many small dry cleaners may qualify for PBR 106.492 at the state level if conditions are met.

7.8 Landfills

- NSPS Subpart Cf applies to new MSW landfills with design capacity ≥ 2.5 million megagrams. Subpart WWW applies to existing MSW landfills. Gas collection and control systems are required when non-methane organic compound emissions exceed thresholds.
- Air permits are required for LFG collection/control systems and any energy recovery engines or turbines.

7.9 Stationary Engines and Turbines

- NSPS Subpart IIII: Compression ignition (diesel) engines. Subpart JJJJ: Spark ignition (natural gas/gasoline) engines. Subpart KKKK: Combustion turbines.
- 40 CFR Part 63 Subpart ZZZZ (RICE NESHAP): Stationary reciprocating engines at major and area HAP sources. Requires periodic testing, catalyst inspections, and maintenance requirements.
- PBR 106.352 is available for many smaller stationary engines meeting specific emission and size criteria.

7.10 Agricultural Operations

- Texas does not currently require air permits for typical livestock operations. Large grain elevators and feed manufacturing facilities may need permits for grain handling, drying, and milling operations.
- CERCLA and EPCRA reporting requirements for large CAFOs have been the subject of ongoing federal legal interpretation — verify current requirements with legal counsel.

CHAPTER 8: POST-PERMIT OBLIGATIONS — AFTER THE PERMIT IS ISSUED

Receiving your permit is the beginning of your compliance obligations, not the end. Many permit holders make the mistake of thinking that once they have a permit, they are done. That is incorrect. Permits come with substantial ongoing obligations — and federal rules like OOOOb/OOOOc impose additional obligations on existing equipment beyond what is in your state permit.

8.1 Pre-Construction and Construction Phase

19. Read your permit conditions carefully. Ensure every responsible person understands them.
20. Submit notice of construction start to TCEQ within the timeframe specified in your permit (typically 30 days of beginning construction).
21. Ensure all control equipment is ordered with delivery timelines aligned with your construction schedule.
22. Document all equipment purchased and installation dates.
23. For oil and gas facilities: Confirm OOOOb compliance equipment (zero-emission pneumatic controllers, OGI monitoring protocols) is specified in construction plans.

8.2 Startup Notification

Submit startup notification to TCEQ at or before first operation, per your permit conditions. Have your Startup/Shutdown/Malfunction (SSM) plan in place before startup if required by your permit or applicable MACT standard.

8.3 Initial Stack Testing

Many permits require initial stack testing within 60 to 180 days of startup.

24. Notify TCEQ at least 30 days before the test date using TCEQ Form PI-7 (submit through STEERS).
25. Hire an EPA-certified third-party stack testing firm using correct EPA Reference Methods specified in your permit.
26. Operate at normal or maximum capacity during all test runs.
27. Submit test report to TCEQ within 60 days of completing the test.
28. For NSPS sources, also submit to EPA Region 6 via EPA's Electronic Reporting Tool (ERT) at epa.gov/electronic-reporting-air-emissions.
29. If test results show exceedances, notify TCEQ immediately and implement corrective action.

8.4 CEMS (If Required)

If CEMS are required by your permit or applicable NSPS/MACT standard, install and certify before the compliance date. Conduct quarterly Relative Accuracy Test Audits (RATAs) and annual cylinder gas audits. Submit Quarterly Excess Emissions and Monitoring Performance Reports to TCEQ. For Title IV (Acid Rain) sources, submit CEMS data to EPA's Clean Air Markets Division quarterly.

8.5 Recordkeeping

Maintain all permit-required records. Typical records include:

- Fuel consumption (monthly and annual totals)
- Raw material usage (solvent purchases, coating consumption)
- Production or throughput records
- Hours of operation for all permitted emission units
- Control device operation records (pressure drops, temperatures, etc.)
- Maintenance and inspection records for all control devices
- LDAR monitoring records — including OGI survey results for oil and gas facilities subject to OOOOb/OOOOc
- Records of any excess emissions or deviations from permit conditions
- OOOOc super emitter response records (oil and gas facilities)

Retain records for a minimum of 5 years (10 years for some MACT standards). Keep records organized and available for TCEQ inspection on request.

8.6 Reporting Requirements

Annual Emissions Inventory (AEI):

- Submit by March 31 for the prior calendar year through TCEQ's STEERS system
- Report actual emissions (not PTE) for all emission units
- TCEQ uses AEI data to track air quality progress and calculate Title V annual fees

Title V Annual Compliance Certification:

- Due March 31 each year to TCEQ and EPA Region 6
- Signed by Responsible Official
- Disclose all deviations from permit conditions during the year

Excess Emissions and Deviation Reports:

- Significant emission events: Initial notification within 24 hours; Detailed Notification within 2 business days per 30 TAC Chapter 101, Subchapter H
- Affirmative defense may be available for equipment malfunction events if conditions in 30 TAC Chapter 101 are satisfied

OOOOb/OOOOc Semi-Annual Reports:

- Oil and gas operators subject to OOOOb and OOOOc must submit semi-annual reports to TCEQ and EPA Region 6 documenting: LDAR/OGI survey results, deviations, super emitter response actions, pneumatic controller replacement progress, and storage vessel compliance status

8.7 Permit Amendments

Before making any physical change to your facility that affects emissions or permit conditions, evaluate whether a permit amendment is required — and if so, obtain it **BEFORE** making the change.

- Minor Administrative Amendments: Name, address changes. Quick processing.
- Minor Technical Amendments: Changes within existing permit limits, no new BACT analysis required. Faster processing.
- Significant Amendments: Emission increases, new emission units, new BACT determinations. Full application, technical review, and public notice required. Timeline: 6 to 18+ months.

NOTE: OOOOb and OOOOc may require permit amendments to incorporate new federal requirements. Work with TCEQ's Air Permits Division to determine whether your existing permit needs to be revised to reflect OOOOb/OOOOc conditions.

8.8 Title V Permit Renewal

Submit renewal applications at least 9 months before expiration (every 5 years). Existing permit remains in effect while a timely renewal is pending. Renewal applications submitted through TCEQ STEERS.

8.9 TCEQ Inspections

TCEQ conducts routine compliance inspections: Title V/major sources annually; minor sources every 2 to 5 years. Complaint-driven inspections can occur at any time. During an inspection, TCEQ will review permit conditions, recordkeeping, visible emissions, control device operation, and previous reports. Be cooperative and professional. Designate one knowledgeable contact during the inspection. Log what records the inspector reviewed.

CHAPTER 9: ENFORCEMENT AND PENALTIES

9.1 Types of Violations

- Construction/operation without a required permit
- Permit condition violations: exceeding emission limits, failing to operate control equipment, missing required reports, inadequate recordkeeping
- Federal rule violations: violating an NSPS or MACT/NESHAP standard — enforceable by EPA regardless of your state permit's contents
- OOOOb/OOOOc violations: failing to replace pneumatic controllers, failing to conduct OGI surveys, failing to respond to super emitter events, failing to control storage vessel emissions
- Reporting violations: submitting false or incomplete information in any report or application

9.2 TCEQ Enforcement Tools

- Notice of Violation (NOV): Formal written notice of a violation — the first step in most enforcement actions
- Agreed Order: Negotiated settlement specifying corrective actions and monetary penalties
- Consent Order: For more complex or ongoing violations
- Field Citation: For minor first-time violations, up to \$1,000 per violation
- Referral to Texas Attorney General: For serious or persistent violations

9.3 Penalty Amounts

- Texas Clean Air Act civil penalties: Up to \$25,000 per day per violation (THSC Section 382.089)
- Federal Clean Air Act civil penalties (EPA enforcement): Up to \$70,117 per day per violation (inflation-adjusted — verify current amount at www.epa.gov)
- Criminal penalties: Knowing violations can result in criminal prosecution, fines, and imprisonment under both state and federal law

TCEQ penalty policy factors: severity of violation, duration, economic benefit of non-compliance, prior violations, and good faith efforts to comply.

9.4 Voluntary Disclosure

TCEQ's voluntary disclosure policy allows self-reporting of violations discovered through environmental audits in exchange for reduced penalties, if specific conditions are met:

30. Discover the violation through your own voluntary environmental audit or self-evaluation
31. Voluntarily disclose to TCEQ within 30 days of discovery
32. Remedy the violation promptly
33. Implement measures to prevent recurrence

NOTE: Voluntary disclosure reduces but does not eliminate penalties. It does not protect against criminal prosecution for willful violations. Consult an environmental attorney before making a voluntary disclosure to ensure all conditions are met.

CHAPTER 10: SPECIAL TOPICS — INCLUDING 2024 REGULATORY UPDATES

10.1 Revised PM_{2.5} Annual NAAQS — February 2024

In February 2024, EPA lowered the annual PM_{2.5} NAAQS from 12 µg/m³ to 9 µg/m³. This is the first revision to the annual PM_{2.5} standard since 2012, and it is one of the most consequential recent regulatory changes for Texas permitting.

What this means for Texas:

- **Designation timeline:** The statutory framework requires EPA to propose non-attainment designations within 12 months of a NAAQS revision and finalize within 2 years. However, the Trump administration that took office in January 2025 announced a review of the 9 µg/m³ standard, signaling potential reversion to the prior 12 µg/m³ standard. As of mid-2025, EPA had not finalized or formally proposed PM_{2.5} non-attainment area designations for Texas, and the designation timeline has been suspended. The 2026 designation deadline referenced in earlier versions of this guide should not be relied upon without verification of current EPA action at www.epa.gov/criteria-air-pollutants.
- **Areas at risk in Texas:** Ambient air quality monitoring data for the Dallas-Fort Worth Metroplex and the Houston-Galveston-Brazoria area show PM_{2.5} concentrations that may not comply with the revised 9 µg/m³ standard in some monitoring locations. These areas are the most likely candidates for non-attainment designation.
- **Permitting impact if designated:** Any major source constructing in a newly designated PM_{2.5} non-attainment area would face Non-attainment NSR rather than PSD — meaning LAER instead of BACT, and mandatory emission offsets at minimum 1.15:1 to 1.3:1 ratios, in addition to existing ozone NSR requirements already in effect in DFW and HGB.
- **Existing facilities:** A non-attainment designation does not immediately require existing permitted facilities to change their operations. However, Reasonably Available Control Technology (RACT) requirements may be applied to existing major sources as part of SIP development.
- **SIP obligations:** If Texas counties are designated non-attainment, TCEQ must develop a SIP revision for PM_{2.5} showing how the state will achieve the 9 µg/m³ standard. This SIP could impose new controls on existing major sources in affected areas.

10.2 NSPS OOOOb and OOOOc — Oil and Gas Methane Rules (December 2023)

See Chapter 7, Section 7.1 for the full detailed breakdown of OOOOb (new and modified sources) and OOOOc (existing sources) requirements. Key summary points for this chapter:

- OOOOb and OOOOc together represent the most sweeping expansion of oil and gas air regulation in over a decade.
- The super emitter response program creates a new compliance obligation tied not to an agency inspection but to third-party remote sensing — operators must respond quickly when notified by any qualified third party of a large emission event.
- Texas Railroad Commission (RRC) coordinates with TCEQ on oil and gas operations but air permitting remains TCEQ's jurisdiction. OOOOb/OOOOc compliance is primarily a federal EPA obligation, separately enforceable from TCEQ permit requirements.
- TCEQ has issued formal implementation guidance (March 23, 2026 memorandum, Executive Director Kelly Keel) establishing that federal NSPS OOOOb/c compliance satisfies equivalent state requirements under 30 TAC Chapter 115 and standardized authorization mechanisms. See

Section 7.1.6 for full details of TCEQ's implementation framework, notification procedures, and state authorization requirements.

10.3 Good Neighbor Plan — Current Legal Status

EPA's Good Neighbor Plan, finalized June 5, 2023 (88 FR 36654), was designed to address interstate transport of ozone-forming NO_x emissions from upwind states including Texas. For Texas specifically, the plan would have imposed NO_x emission budgets on large electric generating units and industrial combustion sources in the DFW and HGB areas.

Current legal status:

- On June 27, 2024, the U.S. Supreme Court stayed the Good Neighbor Plan nationwide in *Ohio v. EPA*, finding that petitioners were likely to succeed on the merits of their challenge to EPA's administrative process. The plan cannot be implemented while the stay is in effect.
- The legal proceedings have been remanded to lower federal courts, where resolution may take additional months to years.
- Texas power plants and industrial NO_x emitters that would have been covered must monitor these proceedings. If the plan is ultimately upheld, compliance timelines may be compressed for facilities that did not begin planning during the stay period.

IMPORTANT: The Good Neighbor Plan is currently stayed and the Trump administration has indicated it will be repealed. Texas facilities that would have been subject to NO_x emission budgets under the plan currently face no compliance obligations. However, Texas's obligations under its own SIP and the Clean Air Act's interstate transport provision remain independent of the federal FIP. TCEQ may still be required to address interstate transport of NO_x through its own SIP process. Verify current status at www.epa.gov/csapr before advising clients on long-term NO_x control strategy.

10.4 Power Plant Carbon Rule — Section 111 GHG Standards (April 2024)

EPA finalized new greenhouse gas standards for power plants under Clean Air Act Section 111(b) and 111(d) in April 2024 (89 FR 39798). These rules establish the most stringent carbon requirements ever imposed on power plants in the United States.

Key provisions:

- New natural gas combined cycle (NGCC) units: CO₂ emission limit achievable through carbon capture and storage (CCS) at 90% capture efficiency for units operating above 40% annual capacity factor. Units operating between 20% and 40% capacity factor face less stringent limits achievable through efficiency measures.
- New simple cycle combustion turbines: Emission limits achievable through efficient equipment and operational practices.
- Existing coal-fired electric generating units (EGUs): Required to either retire by 2039 or install CCS with 90% capture efficiency by 2032.
- Texas implications: Texas has one of the largest natural gas-fired generation fleets in the nation. New NGCC plants proposed for construction must evaluate these standards as part of BACT analysis and permit applications.

Legal status:

- Multiple states (including Texas) and industry groups filed challenges to the power plant carbon rule in federal courts shortly after finalization.
- The rule's scope and viability were challenged immediately on multiple grounds, including under the Supreme Court's 2022 decision in *West Virginia v. EPA*, 597 U.S. 697 (major questions doctrine), and on procedural grounds. A federal circuit court issued a stay of the rule pending judicial review. The Trump administration that took office in January 2025 moved to repeal the rule as part of a broad rollback of Biden-era GHG regulations for the power sector.
- As of mid-2025, the rule is stayed and repeal proceedings are underway. Texas natural gas plant developers should not treat this rule as imposing current compliance obligations, but should monitor EPA's rulemaking docket for any revised GHG standards that may follow. Verify current status at www.epa.gov/stationary-sources-air-pollution.

10.5 Greenhouse Gas Permitting — Existing Framework

The EPA's existing GHG permitting framework (Tailoring Rule) remains in effect for large industrial sources, separate from the Power Plant Carbon Rule:

- GHG PSD threshold: Sources already major for another pollutant that increase GHG emissions by 75,000 tpy CO₂e trigger GHG PSD review.
- New sources with GHG PTE of 100,000 tpy CO₂e or more may also trigger PSD.
- GHG BACT: Required when GHGs trigger PSD. For most industrial sources, GHG BACT results in energy efficiency measures and good combustion practices.
- GHG Mandatory Reporting (40 CFR Part 98): Facilities emitting 25,000 tpy CO₂e or more must report annually to EPA by March 31 through ghgdata.epa.gov.

10.6 Texas Regional Haze — Second Planning Period

Texas has two federal Class I areas: Big Bend National Park (Brewster/Presidio Counties) and Guadalupe Mountains National Park (Culberson/Hudspeth Counties). Under EPA's Regional Haze Rule (40 CFR Part 51, Subpart P), Texas must achieve natural visibility conditions in these parks by 2064 through a series of planning periods.

Second planning period (2018–2028) status:

- TCEQ submitted its second Regional Haze SIP to EPA Region 6. EPA is reviewing the adequacy of the SIP's long-term visibility improvement strategy.
- Best Available Retrofit Technology (BART): Certain large older sources in the region have been required to implement BART controls under the first planning period. The second period evaluates continued progress.
- PSD permit implications: Facilities constructing new major sources within the significant impact area of Big Bend or Guadalupe Mountains must analyze potential visibility impacts on these Class I areas and notify the Federal Land Manager (National Park Service).
- TCEQ Modeling Team can provide current screening distances and significance thresholds for Class I area analyses. Contact: (512) 239-1668.

NOTE: If your facility is within approximately 300 km of Big Bend National Park or Guadalupe Mountains National Park and requires a PSD permit, contact TCEQ's Modeling Team early in your project planning. Class I area analyses require specific modeling techniques and can add significant time to the permitting process.

10.7 Environmental Justice Considerations

TCEQ and EPA increasingly consider Environmental Justice (EJ) factors in permitting decisions. EPA's EJSCREEN tool (www.epa.gov/ejscreen) allows assessment of whether your facility is in a community with elevated pollution burdens. If it is, plan for more extensive community engagement and greater scrutiny from TCEQ and EPA Region 6. Texas Senate Bill 900 (2023) established some EJ-related requirements for TCEQ permitting in certain communities.

10.8 Air Permit Transfers

If acquiring an existing Texas-permitted facility, transfer the air permit into your name before taking operational control. Submit a Permit Transfer Application through TCEQ STEERS with documentation of the acquisition. Permit transfers typically process within 30 to 60 days. If you plan to modify the facility after acquisition, coordinate the permit amendment with the transfer to avoid serial processes.

10.9 Emission Credits and Offset Markets

For Non-attainment NSR permits requiring offsets, purchase Emission Reduction Credits (ERCs) from TCEQ's registry. ERCs must be real, surplus, quantifiable, and permanent — they cannot come from reductions that were already required by law. Contact TCEQ's Air Permits Division for current ERC availability in specific non-attainment areas. If new DFW or HGB PM2.5 non-attainment designations occur, ERC demand for PM2.5 precursors in those areas will increase.

10.10 Loper Bright — Impact on EPA Regulatory Authority

On June 28, 2024, the U.S. Supreme Court overturned 40 years of Chevron deference in *Loper Bright Enterprises v. Raimondo*, 603 U.S. ____ (2024). Federal courts will no longer defer to EPA's interpretations of ambiguous statutory language — they will exercise independent judgment. Combined with the major questions doctrine established in *West Virginia v. EPA* (2022), this represents the most significant constraint on EPA regulatory authority since the modern Clean Air Act era began.

Practical implications for Texas air permitting:

- BACT determinations: EPA BACT guidance and determinations in the RBLC database remain useful, but the legal weight of EPA's interpretive positions is diminished. Facilities should be prepared for more litigation over BACT determinations in major NSR permits.
- NAAQS revisions: Future NAAQS revisions may face greater legal scrutiny, particularly where the statutory basis for the revised standard level involves scientific judgment calls that courts will now review independently.
- NSPS and NESHAP rules: Rules that rely on broad interpretations of 'best system of emission reduction' or 'maximum achievable control technology' may be challenged on statutory interpretation grounds under *Loper Bright*.
- Existing permits: Permit conditions derived from EPA guidance that was itself based on Chevron-supported interpretations may face challenges if those interpretations are now found incorrect by courts under independent review.

NOTE: *Loper Bright* does not mean EPA rules are presumptively invalid. Rules with clear and unambiguous statutory authorization are unaffected. The impact is greatest on regulatory programs

where EPA relied on broad or creative interpretations of ambiguous Clean Air Act language. Facilities should evaluate the Loper Bright risk profile of any permit conditions they are preparing to litigate or challenge.

10.11 IRA Methane Waste Emissions Charge — Texas Oil and Gas

Clean Air Act Section 136, added by the Inflation Reduction Act (2022), imposes a Methane Waste Emissions Charge on petroleum and natural gas system facilities that: (1) report under 40 CFR Part 98, Subpart W; and (2) emit methane above facility-specific waste emission thresholds based on segment type and activity. The charge is not a tax on all reported methane — it applies specifically to methane emissions that exceed EPA-defined waste thresholds.

Rate and timeline: \$900 per metric ton of waste emissions for calendar year 2024 (first payment obligation arising in 2025); \$1,200/metric ton for 2025; \$1,500/metric ton for 2026 and beyond. These rates apply only to the above-threshold waste emissions, not to total methane emissions.

Relationship to NSPS OOOOb/OOOOc compliance: Facilities subject to and in compliance with an applicable NSPS (e.g., OOOOb) or EPA-approved state plan implementing an emission guideline may be exempt from the charge for the equipment covered by that NSPS. This creates a direct financial incentive for voluntary OOOOb compliance for existing facilities — compliance with OOOOb may eliminate or reduce methane waste charge exposure for OOOOb-covered equipment.

- Calculation basis: Charge is calculated from reported emissions in 40 CFR Part 98 annual reports, minus applicable waste thresholds and any NSPS compliance credits.
- Who reports under Part 98 Subpart W: Natural gas production, gathering, processing, transmission, compression, and distribution facilities meeting reporting thresholds. If your facility already files Part 98 GHG reports for Subpart W, the charge framework applies to your reported data.
- Payment mechanism: EPA has developed or is developing a payment system; consult current EPA guidance on collection procedures.

IMPORTANT: *As of mid-2025, the Methane Waste Emissions Charge was subject to administrative and legislative efforts to delay or eliminate it under the Trump administration. However, the charge has statutory authority in the IRA and cannot be eliminated without Congressional action. Texas operators subject to Part 98 Subpart W reporting should calculate their potential exposure under the charge regardless of current political outlook, and should monitor EPA guidance at www.epa.gov/inflation-reduction-act-and-epa/methane-emissions-charge for current implementation status.*

CHAPTER 11: RESOURCES, CONTACTS, AND USEFUL LINKS

11.1 TCEQ Resources

- TCEQ Website: www.tceq.texas.gov
- Air Permits Division (Austin): (512) 239-1250
- TCEQ Modeling Team (Class I areas, air dispersion): (512) 239-1668
- TCEQ STEERS Online System: www15.tceq.texas.gov/steers/
- TCEQ Permit Search: www15.tceq.texas.gov/crpub/
- TCEQ Air Rules (30 TAC): texreg.sos.state.tx.us
- TCEQ Air Quality Guidance Documents: www.tceq.texas.gov/permitting/air/guidance
- TCEQ Rulemaking (active and recent): www.tceq.texas.gov/rules/propose_adopt.html

11.2 EPA Resources

- EPA Website: www.epa.gov
- EPA Region 6 (Dallas, covers Texas): www.epa.gov/aboutepa/epa-region-6-south-central | (214) 665-2200
- EPA AP-42 Emission Factors: www.epa.gov/air-emissions-factors-and-quantification
- EPA RACT/BACT/LAER Clearinghouse (RBLC): rbcl.epa.gov
- EPA NSPS/MACT Standards Finder: www.epa.gov/stationary-sources-air-pollution
- EPA Green Book (non-attainment areas — check for 9 µg/m³ PM_{2.5} designations): www.epa.gov/green-book
- EPA EJSCREEN Tool: www.epa.gov/ejscreen
- EPA Electronic Reporting Tool (stack tests): epa.gov/electronic-reporting-air-emissions
- GHG Mandatory Reporting: ghgdata.epa.gov
- EPA CSAPR / Good Neighbor Plan: www.epa.gov/csapr
- EPA Air Rulemaking (track new rules): www.epa.gov/air-pollution-regulations

11.3 Key Regulations Quick Reference

- THSC Chapter 382: Texas Clean Air Act
- 30 TAC Chapter 101: General Air Quality Rules
- 30 TAC Chapter 106: Permits by Rule
- 30 TAC Chapter 116: NSR Permits (minor and major)
- 30 TAC Chapter 117: Nitrogen Compounds (NO_x rules)
- 30 TAC Chapter 122: Title V Federal Operating Permits
- 40 CFR Part 52.21: Federal PSD regulations
- 40 CFR Part 60 Subpart OOOOb: New/modified oil and gas sources (NEW 2023)
- 40 CFR Part 60 Subpart OOOOc: Existing oil and gas sources (NEW 2023)
- 40 CFR Part 60: All NSPS standards (all subparts)
- 40 CFR Part 63: MACT/NESHAP standards (all subparts)
- 40 CFR Part 70: Title V operating permits

- 40 CFR Part 98: GHG Mandatory Reporting
- 40 CFR Part 51, Subpart P: Regional Haze Rule

CHAPTER 12: QUICK REFERENCE TIMELINE

Use this as a project management checklist. Your specific permit contains binding deadlines that control. Read all permit conditions and set calendar reminders for every deadline. OOOOb/OOOOc compliance milestones are included for oil and gas facilities.

Phase	Typical Timeline	Key Actions Required
PHASE 1: Project Definition	Months 1–2	Define all emission units, fuels, raw materials, throughput, operating hours, and stack parameters. For oil and gas: inventory all existing equipment for OOOOc applicability — this is separate from permit applications.
Applicability Determination	Month 1	Calculate PTE for all pollutants. Check 30 TAC 101.10 (exemptions) and Chapter 106 (PBRs). Check EPA Green Book for current PM _{2.5} non-attainment status in your county — new designations under the 9 µg/m ³ standard may have occurred.
Federal Standards Review	Month 1–2	Identify all applicable NSPS (40 CFR Part 60) and MACT (40 CFR Part 63) standards. For oil and gas: assess OOOOb applicability (new/modified sources) AND OOOOc applicability (existing sources) — these are separate assessments.
OOOOc Compliance Assessment (Oil & Gas Existing Sources)	IMMEDIATE — Ongoing through 2026	Conduct a complete inventory of all existing oil and gas equipment against OOOOc requirements. Develop a phased replacement plan for non-compliant pneumatic controllers. Establish OGI survey program. Implement super emitter response plan. File required notifications with EPA Region 6.
OOOOb Compliance (New/Modified Oil & Gas Sources)	Prior to construction of any new/modified equipment	Before designing new well sites, compressor stations, or processing equipment: verify all pneumatic controllers will be zero-emission, OGI survey protocols are in design, storage vessels include vapor control, and flare systems meet combustion efficiency standards.
PHASE 2: Pre-Application	Months 2–5	Complete all technical analyses before filing.
BACT/LAER Analysis (Major NSR)	Month 2–4	Top-down BACT (PSD) or LAER (non-attainment). Use EPA RBLC (rblc.epa.gov). Big Bend NP or Guadalupe Mountains NP Class I analysis required if within ~300 km. Contact TCEQ Modeling Team: (512) 239-1668.
Air Dispersion Modeling (Major NSR)	Month 2–5	AERMOD modeling. Collect 5 years of hourly meteorological data. Model all stacks and fugitive sources. Demonstrate compliance with NAAQS (including revised 9 µg/m ³ PM _{2.5} standard) and applicable PSD increments.
Offset Acquisition (Non-attainment NSR)	Month 2–5	For DFW (1.3:1 ratio for VOC/NO _x) or HGB (1.1:1 ratio) projects: identify and purchase ERCs from TCEQ's registry. If new PM _{2.5} non-attainment designation: acquire PM _{2.5} ERCs at applicable ratio.
Pre-Application Meeting with TCEQ	Month 3–4	Request free pre-application meeting: TCEQ Air Permits Division (512) 239-1250 or via STEERS. Confirm permit type, OOOOb/OOOOc permit incorporation approach, and application requirements.

PHASE 3: Application Preparation	Months 4–6	Assemble and submit complete application package.
Application Submission	Month 5–6	Submit through TCEQ STEERS at www15.tceq.texas.gov/steers/ . Pay application fee. For oil and gas: include OOOOb compliance demonstration in application materials. Retain proof of submission.
PHASE 4: Agency Review	Months 6–18+	TCEQ reviews your application.
Completeness Review	30–90 days after submission	TCEQ checks for completeness. Respond to any deficiency letter within 30 days with all missing information.
Technical Review / RAIs	Months 7–14	Respond to all TCEQ Requests for Additional Information (RAIs) within 30 days. Address modeling, BACT, OOOOb/OOOOC, and federal standards questions fully.
Draft Permit Review	Months 12–16	Review ALL conditions in draft permit. Verify OOOOb/OOOOC requirements are correctly captured. Address errors before public notice begins.
Public Notice	30 days	TCEQ posts notice and may require newspaper publication. 30-day public comment period begins. In DFW/HGB non-attainment areas, expect heightened community interest.
EPA Review (Title V)	45 days concurrent with or after comment period	EPA Region 6 (Dallas) reviews proposed Title V permit. TCEQ cannot issue until any EPA objection is resolved.
Permit Issuance	Minor NSR: 6–12 months; Major NSR/PSD: 12–24 months; Title V: 18–30+ months	Final permit issued. Construction begins ONLY after receiving the signed final permit. Do not break ground before this point.
PHASE 5: Construction	Per construction schedule	Build per permit conditions.
Construction Start Notice	Per permit (typically 30 days after breaking ground)	Submit written notice to TCEQ through STEERS per permit conditions. For oil and gas: confirm OOOOb-compliant equipment (zero-emission pneumatics, vapor-controlled tanks) is installed.
PHASE 6: Startup	Per permit	Begin operations and meet initial compliance deadlines.
Startup Notification	At or before first day of operations	Submit startup notice to TCEQ per permit conditions. Begin all required recordkeeping systems on Day 1. Activate OGI survey schedule for oil and gas facilities.
Initial Stack Test	60–180 days after startup (check permit)	Notify TCEQ 30 days before test via STEERS (Form PI-7). Hire certified firm, use correct EPA Reference Methods. Submit report within 60 days. NSPS sources also submit to EPA via ERT.

CEMS Certification (if required)	Before or at startup per permit	Install and certify CEMS per 40 CFR Part 60 Appendix B. For Title IV sources, register with EPA CAMD and submit data quarterly.
PHASE 7: Ongoing Operations	Continuous	Maintain all ongoing compliance obligations.
Recordkeeping	Daily/monthly — ongoing	Maintain all permit-required records: fuel use, production, hours, control device logs, maintenance records, LDAR/OGI results. Retain minimum 5 years (10 years for some MACT standards).
Annual Emissions Inventory (AEI)	March 31 each year	Submit AEI through TCEQ STEERS for prior calendar year. Report ACTUAL emissions, not PTE. Texas deadline: March 31.
Title V Annual Compliance Certification	March 31 each year (Title V sources)	Responsible Official certifies compliance for all applicable requirements to TCEQ AND EPA Region 6. Disclose any deviations.
OOOOOb/OOOOoc Semi-Annual Reports (Oil & Gas)	Every 6 months	Submit semi-annual reports documenting OGI survey results, deviations, pneumatic controller replacement progress, storage vessel compliance, and any super emitter events and responses, to TCEQ and EPA Region 6.
GHG Annual Report (if applicable)	March 31 each year	Facilities emitting 25,000 tpy CO ₂ e or more submit annual GHG report to EPA via ghgdata.epa.gov under 40 CFR Part 98.
CEMS Quarterly Reports	30 days after end of each quarter	Submit Quarterly Excess Emissions and Monitoring Performance Reports to TCEQ via STEERS.
Emission Event Notification	Within 24 hours / detailed within 2 business days	Notify TCEQ of significant emission events per 30 TAC Chapter 101, Subchapter H. For OOOOb/OOOOoc super emitter events: respond within 5 days of notification; corrective action within 30 days.
Permit Amendments	BEFORE any physical change affecting emissions	Contact TCEQ BEFORE changes. OOOOb/OOOOoc may require permit amendments — coordinate with TCEQ Air Permits Division. Do not make changes without authorization.
Title V Renewal	9 months before expiration (every 5 years)	Submit renewal at least 9 months before expiration through STEERS. Include updated OOOOb/OOOOoc compliance status in renewal documentation. Existing permit valid while timely renewal is pending.
Monitor Good Neighbor Plan Status	Ongoing — check quarterly	Large NO _x emitters (power plants, industrial combustion): check www.epa.gov/csapr quarterly for Good Neighbor Plan legal status updates. Begin NO _x control planning now regardless of stay status.
Monitor PM _{2.5} Non-attainment Designations	Ongoing — check EPA Green Book	DFW and HGB facilities: PM _{2.5} non-attainment designation timeline under the revised 9 µg/m ³ standard has been suspended pending Trump administration review of the standard itself. Check www.epa.gov/criteria-air-pollutants and www.epa.gov/green-book for current designation status before PM _{2.5} permitting decisions.

NOTE: Texas Annual Emissions Inventory deadline is March 31 — both AEI and Title V Annual Compliance Certification are due the same day. Oil and gas operators subject to OOOOb/OOOOc have additional semi-annual reporting obligations. The Good Neighbor Plan and PM2.5 non-attainment designations are active regulatory developments — check current status quarterly.